

ELIZABETH II



1980 CHAPTER xix

An Act to confirm a Provisional Order made by the Minister of Transport under the General Pier and Harbour Act 1861 relating to Brighton West Pier.

[17th July 1980]

WHEREAS a Provisional Order made by the Minister of Transport under the General Pier and Harbour Act 1861 1861 c. 45. is not of any validity or force whatever until confirmation thereof by Act of Parliament:

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the said Act as set out in the Schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Order as set out in the Schedule to this Act shall be Confirmation and the same is hereby confirmed and all the provisions thereof of Order in in manner and form as they are set out in the said Schedule shall Schedule. from and after the passing of this Act have full validity and force.

2. This Act may be cited as the Pier and Harbour Order Short title. (Brighton West Pier) Confirmation Act 1980.

Pier and Harbour Order
(Brighton West Pier) Confirmation Act 1980

Section 1.

SCHEDULE

BRIGHTON WEST PIER

Provisional Order to confer powers upon The Brighton West Pier Society Limited under the Brighton West Pier Acts and Order 1866 to 1954.

Short and
collective
titles.

1.—(1) This Order may be cited as the Brighton West Pier Order 1979.

(2) The Brighton West Pier Acts and Order 1866 to 1954 and this Order may be cited together as the Brighton West Pier Acts and Orders 1866 to 1979.

Commence-
ment.

2. This Order shall come into operation upon the day when the Act confirming this Order is passed.

Interpretation.

3. In this Order unless the context otherwise requires—

“ Company ” means The Brighton West Pier Society Limited;

“ existing local enactments ” means the Brighton West Pier Acts and Order 1866 to 1954;

“ former Company ” means the Brighton West Pier Company incorporated by the Brighton West Pier Act 1890 and now in liquidation;

“ pier ” means the Brighton West Pier in the borough of Brighton in the county of East Sussex as constructed by the former Company or their predecessors in title and the land, buildings, works, plant, property and conveniences connected therewith as for the time being existing.

1890 c. lxii.

Application of
Harbours
Clauses Act
1847.

1847 c. 27.

4.—(1) In the application to this Order of the Harbours, Docks and Piers Clauses Act 1847 the expression “ special Act ” shall mean this Order.

(2) Sections 12 and 13, 16 to 19 and 84 to 87 of the Harbours, Docks and Piers Clauses Act 1847 shall not be incorporated with this Order.

Vesting of
powers in
Company.

5.—(1) On and from the vesting in the Company, by conveyance from the Crown Estate Commissioners, of the whole of the pier now vested in Her Majesty in right of Her Crown, all powers and obligations of the former Company under the existing local enactments except those specified in Part II of the Schedule to this Order shall be transferred to, and become the powers and obligations of, the Company.

(2) As soon as may be after the vesting of the pier in the Company, the Company shall publish in a newspaper circulating in the borough of Brighton notice of that vesting and of the date of the vesting.

(3) A photostatic or other reproduction certified by the Secretary of the Company to be a true reproduction of a page, or part of a page, of any newspaper bearing the date of its publication and containing the notice mentioned in subsection (2) above shall be evidence of the publication of the notice, and of the date of publication.

6.—(1) The enactments set out in columns (1) and (2) of Part I of Repeal the Schedule to this Order shall be repealed to the extent mentioned in column (3) thereof on the date of vesting referred to in section 5(2) of this Order.

(2) The enactments set out in columns (1) and (2) of Part II of that Schedule shall be repealed to the extent mentioned in column (3) thereof on the dissolution of the former Company.

7. All costs, charges and expenses of and incidental to the preparing Costs of and obtaining of this Order and otherwise incurred in reference thereto Order. shall be paid by the Company.

SCHEDULE

Section 6.

ENACTMENTS REPEALED

PART I

Chapter (1)	Short title (2)	Extent of repeal (3)
27 & 28 Vict. c. 93.	Pier and Harbour Order Confirmation Act 1864.	Brighton West Pier Order 1864.
29 & 30 Vict. c. ccclxi.	Brighton West Pier Act 1866.	Sections 45 and 54.
53 & 54 Vict. c. lxii.	Brighton West Pier Act 1890.	Sections 14, 20 to 22 and 47.
2 & 3 Eliz. 2. c. xxxi.	Pier and Harbour Order (Brighton) Confirmation Act 1954.	In the Brighton West Pier Order 1954, sections 4, 31 and 32.

Pier and Harbour Order
(Brighton West Pier) Confirmation Act 1980

PART II

Chapter (1)	Short title (2)	Extent of repeal (3)
29 & 30 Vict. c. ccclxi.	Brighton West Pier Act 1866.	In section 2, the words from "The Companies Clauses Consolidation Act 1845" to "The Companies Clauses Act 1863".
53 & 54 Vict. c. lxii.	Brighton West Pier Act 1890.	In section 2, the words from "The Companies Clauses Consolidation Act 1845" to "The Companies Clauses Act 1863", sections 4 to 8, 11 to 13, 15, 16, 18, 19 and 23 to 25 and the Schedule.
2 & 3 Eliz. 2. c. xxxi.	Pier and Harbour Order (Brighton) Confirmation Act 1954.	In the Brighton West Pier Order 1954, sections 5, 7 to 19 and 22 to 29.

PRINTED IN ENGLAND BY BERNARD M. THIMONT
Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

70p net

ISBN 0 10 511980 6